



Forthcoming judgments

The European Court of Human Rights will be notifying in writing two judgments on Tuesday 30 July 2019.

*Press releases and texts of the judgments and decisions will be available at **10 a.m.** (local time) on the Court's Internet site (www.echr.coe.int)*

Tuesday 30 July

Harun Gürbüz v. Turkey (applications no. 68556/10)

The applicant, Harun Gürbüz, is a Turkish national who was born in 1988 and lives in Istanbul (Turkey).

The case concerns his complaint that he was found guilty of crimes including murder on the basis of statements to the police which were given under duress and without a lawyer being present.

Mr Gürbüz was tried and convicted over two attacks on taxi drivers in Istanbul. In the first incident, in January 2007, the driver was stabbed and killed, while in the second, in April of the same year, another driver was stabbed and injured.

The police placed the applicant and another man, M.K., under arrest soon after the second incident, and interviewed them.

According to the police's reports of the interviews, when first questioned, the applicant confessed to being involved, along with M.K., in the stabbing of the second taxi driver. He then admitted, when questioned again, to taking part in the murder of the first taxi driver, also with M.K. Both interviews took place without a lawyer being present. The police had tried to obtain a lawyer from the Istanbul Bar Association but it had refused to appoint anyone unless the suspect was a minor, apparently due to strike action.

The applicant signed the record of both interviews and only saw a lawyer, hired by his family, after the second questioning. The applicant alleges that his lawyer asked for the second interview to be carried out again, but the police refused.

The applicant, accompanied by his lawyer, was subsequently questioned by the Istanbul Public Prosecutor. He confirmed his involvement in the second attack, but alleged that it was M.K. who had actually stabbed the driver.

Moreover, he denied the content of the statements made in the police interview regarding the first incident. He stated that he had not had any connection with the acts of murder and attempted robbery that had taken place in January 2007, and alleged that he had only related what M.K. had told him. The applicant later confirmed that statement to an investigating judge.

The applicant was tried by the Istanbul Assize Court for both crimes. During the murder trial, which began in September 2007, he stated that he had been coerced into signing the interview record with his confession in the absence of a lawyer, without being able to read it first. He and M.K. denied all the robbery and murder charges and submitted that their statements had been made under duress.

Both men were found guilty in February 2009 and sentenced to life imprisonment for murder and to five years for attempted robbery.

The trial for the attack on the second taxi driver ended in June 2008. Both the applicant and M.K. retracted their statements given at the pre-trial stage and denied attempted robbery. The applicant was convicted and sentenced to five years in jail for attempted robbery and to two years and one month for intentionally causing bodily harm.

The applicant complains that his right to a fair trial was infringed by the use of statements given as the result of coercion while in police custody without access to a lawyer. The Court will examine this complaint under Article 6 §§ 1 and 3 (c) (right to a fair trial and right to legal assistance of own choosing) of the European Convention on Human Rights. The applicant also raises a complaint under Article 6 § 3 (d) (right to obtain attendance and examination of witnesses).

[Ürek and Ürek v. Turkey \(no. 74845/12\)](#)

The applicants, Nezir Ürek and Ahmet Ürek, are Turkish nationals, who were both born in 1960 and live in Şırnak (Turkey).

The case concerns the conviction of the applicants for membership of the PKK, for having made terrorist propaganda and for resisting the police during a non-peaceful demonstration.

On 5 December 2009 a demonstration was held in Cizre to protest about the conditions of detention of Abdullah Öcalan, the leader of the PKK (Kurdish Workers' Party), an illegal terrorist organisation.

A group of 10 to 15 demonstrators waved posters of Abdullah Öcalan and shouted slogans in support of him. The police asked them to disperse but they refused and attacked the police officers with stones. When the police intervened, the demonstrators started running away and the applicants and four other people were arrested. At the place of the arrest the police found a number of banners with slogans in support of the leader of the terrorist organisation, as well as wooden clubs and iron bars.

Two days later, Nezir Ürek and Ahmet Ürek were brought before the public prosecutor and the Cizre Magistrates' Court. They stated that they had not participated in the demonstration and had no knowledge of the banners found. The court decided, however, to remand the applicants in custody. Still in December 2009 the public prosecutor filed a bill of indictment against the applicants, charging them with membership of an illegal organisation, carrying explosive materials, violating the Meetings and Demonstration Marches Act, and disseminating propaganda in favour of the PKK.

In June 2010 eight police officers who had carried out the applicants' arrest spontaneously attended to give evidence before the first-instance court, without the attendance of the applicants or their lawyers. They stated that they would not be able to go back to the court for the next hearing because they were stationed far away, and would be on duty that day. The court accepted their statements made in the presence of the public prosecutor, but in the absence of the applicants and their lawyers. In their statements, two of the eight police officers contended that they had seen all arrestees throwing stones and chanting illegal slogans during the demonstration, which was different to their statements made during the investigation stage.

During the next hearing the officers' statements were read out to the applicants and their lawyers. The applicants objected to those statements, stating that they had been deprived of their right to cross-examine those witnesses. They asked the court to re-examine the police officers in their presence, but without success. In December 2010 the court gave judgment and convicted the applicants of disseminating propaganda in support of a terrorist organisation, taking part in a demonstration while in possession of prohibited materials, resisting the security forces and obstructing them in the execution of their duties by way of resistance, and of membership of an illegal organisation.

The applicants appealed, but the Court of Cassation upheld the judgment of the first-instance court. On an unspecified date in 2015 the applicants were released after serving their sentences.

Relying on Article 6 §§ 1 and 3 (d) (right to a fair trial and right to obtain attendance and examination of witnesses) of the European Convention, the applicants allege, in particular, that they had been convicted despite the fact that they had not been involved in any violence, that the first-instance court had failed to conduct a proper enquiry and that they had been deprived of the opportunity to question police officers whose statements had been taken in court in the applicants' absence.

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.